

The Consumer Protection (Rajasthan) Rules, 1987

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State of Rajasthan - Act

The Consumer Protection (Rajasthan) Rules, 1987

RAJASTHAN

India

The Consumer Protection (Rajasthan) Rules, 1987

Rule THE-CONSUMER-PROTECTION-RAJASTHAN-RULES-1987 of 1987

Published on 21 July 1987

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The Consumer Protection (Rajasthan) Rules, 1987

Published vide Notification No. F.20(40) FS/ Meeting/ 87, dated 21.7.1987, Published in Rajasthan Gazette Extraordinary, part 4-C(1), dated 23.7.1987, page 41

G.S.R. 17. - In exercise of the powers conferred by sub-section (2) of section 30 of the Consumer Protection Act, 1986 (Central Act 68 of 1986), the State Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Consumer Protection (Rajasthan) Rules, 1987.

(2)

[They shall come into force on the date [of its publication in the official Gazette.]

[Substituted by Notification No. F.89 (1)FS/CP/87, dated 26.4.1989 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 27.4.1989, Page 5]

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2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Act" means the Consumer Protection Act, 1986 (Central Act 68 of 1986);

(b)

"agent" means a person duly authorised by a party to present any complaint or appeal or reply on its behalf before the State Commission or the District Forum;

(c)

"appellant" means a party which makes an appeal against the order of the District Forum;

(d)

"memorandum" means memorandum of appeal filed by the appellant;

(e)

"opposite party" means a person who answers complaint or claim;

(f)

"president" means the president of the State Commission or District Forum as the case may be;

(g)

"respondent" means the person who answers any memorandum of appeal;

(h)

"State" means the State of Rajasthan.

3.

Salaries and other allowances and terms and condition of the presidents and members of the District Forum [Section 10(3)].

- [(1) The president of the District Forum appointed on whole-time basis shall receive a salary equivalent to the Judge of the District Court. Other members sitting on whole-time basis shall receive a consolidated honorarium of Rs. 20,000/- (Rupees Twenty Thousand) per month.

(1A)

Initial honorarium for the Members of the District Forum will be Rs. 20,000/- (Rupees Twenty Thousand) per month and on completion of one year tenure the increase in honorarium will be Rs. 4,000/- (Rupees Four thousand) per year. The existing Members working as on 31.12.2012 will get increase of Rs. 4,000/- in honorarium w.e.f. 01.01.2013. Honorarium shall be subject to the maximum of Rs. 36,000/- (Rupees Thirty Six Thousand)

(1B)

In addition to this Members are entitled for Rs. 2,000/- per month as conveyance allowance:

Provided that the President who is a retired Judicial Officer, shall receive remuneration of last pay drawn less pension.]

[Substituted by Rajasthan Notification No. G.S.R. 7, dated 1.5.2013 (w.e.f. 23.7.1987).]

(2)

The president and the members of the District Forum shall be entitled for such travelling allowance and daily allowance on official tour as are admissible to Grade I officer of the State Government.

(3)

The salary, honorarium and other allowances shall be defrayed out of the Consolidated Fund of the State Government.

(4)

Before appointment, the president and members of the District Forum shall have to taken an undertaking that he and his relatives as defined in the Companies Act, 1956 (Central Act, 1956) does not and will not have any such financial or other interests as is likely to affect prejudicially his functions as a member.

(5)

In addition to the provisions of section 10(2) of the Act, the State Government may remove from the office, the president and member of a District Forum who:-

(a)

has been adjudged an insolvent, or

(b)

has been convicted of an offence which, in the opinion of the State Government, involves moral turpitude, or

(c)

has become physically or mentally incapable of acting as such president or member, or

(d)

has acquired such financial or other interest as is likely to affect prejudicially his functions as a member, or

(e)

has so abused his position as to render his continuance in office prejudicial to the public interest:

Provided that the president or member shall not be removed from the office on the ground specified in clauses (d) and (e) of the [sub-rule (5)]

[Substituted by Notification No. F.89 (DFS/CP/87, dated 19.7.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 19.7.1988, Page 49]

except any complaint or appeal or reply on its behalf before the State Commission or the District Forum.

(6)

The terms and conditions to the service of the president and the members of the District Forum shall not be varied to their disadvantage during their tenure of office.

(7)

Where any vacancy occurs in the office of the president of the District Forum, the senior-most (in order of appointment) member of District Forum, holding office for the time being, shall discharge the functions of the president until a person appointed to fill such vacancy assumes the office of the president of the District Forum.

(8)

When the president of the District Form is unable to discharge the functions owing to absence, illness or any other clause, the senior-most (in order of the appointment) member of the District Forum shall discharge the functions of the president until the day on which the president resumes charge or his functions.

(9)

The president or any member ceasing to hold office as such shall not hold any appointment in or be connected with the management or administration of an organisation which have been the subject of any proceeding under the Act during his tenure for a period of 5 years from the date on which he ceases to hold such office.

4.

Place of sitting and other matters relating to District Forum [Section 14(3).]

(1)

The office of the District Forum shall be located at the headquarters of the District. Where the State Government decides to establish a single District Forum having jurisdiction over more than one district. It shall notify the place and jurisdiction of the District Forum so established.

(2)

The working days and the office hours of the District Forum shall be the same as that of the State Government.

(3)

The official seal and emblem of the District Forum shall be such as the State Government may specify.

(4)

Sitting of the District Forum, as and when necessary, shall be convened by the president.

(5)

No act or proceedings of the District Forum shall be invalid by reason only of the existence of any vacancy among its members or any defect in its constitution.

(6)

The State Government shall appoint such staff, as may be necessary to assist the District Forum in its day to day work [and to perform]

[Substituted by Notification No. F.89 (DFS/CP/87, dated 19.7.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 19.7.1988, Page 49]

such other functions as are provided under these rules, or assigned to it by the president. The salary payable to such staff shall be defrayed out of the consolidated fund of the State Government.

(7)

Where the opposite party admits the allegation made by the complainant, the District Forum shall decide the complaint on the basis of the merit of the case and documents present before it.

(8)

If during the proceedings conducted under section 13 of the Act, the District Forum fixes a date for hearing of the parties, it shall be obligatory on the complainant and opposite party or its authorised agent to appear before the District Forum on such date of hearing or any other date to which hearing could be adjourned.

(9)

Where the complainant or his authorised agent fails to appear before the District Forum on such day, the District Forum may in its discretion either dismiss the complaint in default or if a substantial portion of the evidence of the complainant has already been recorded decide it on merits. Where the opposite party or its authorised agent fails to appear on the day of hearing the District Forum may decide the complaint ex-parte.

(10)

Where any party to a complaint to whom time has been granted fails to produce his evidence or to cause the attendance of his witnesses, or to perform any other act necessary to the further progress of the complaint for which time has been allowed, the District Forum may, notwithstanding such default:-

(a)

if the parties are present, proceed to decide the complaint forthwith: or

(b)

if the parties are, or any of them is absent, proceed under sub-rule (9).

(11)

The District Forum may, on such terms as it may think fit at any stage, adjourn the hearing of the complaint but not more than one adjournment shall ordinarily be given and the complaint should be decided within 90 days from the date of notice received by the opposite party where complaint does not require analysis or testing of the goods and within 150 days if it requires analysis or testing of the goods.

(12)

Orders of the District Forum shall be pronounced and shall be signed and dated by the members of the District Forum consisting the Bench [x x x]

[Certain words deleted by Notification No. F.89 (I)FS/CP/87, dated 26.4.1989 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 27.4.1989, Page 5]

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5.

Procedure to be adopted by the District Forum for analysis and testing of the goods [Section 13(1)(c) of the Act.]

- Under Section 13(1)(C) of the Act, if considered necessary, the District Forum may direct the complaint to provide more than one sample of the goods in clean containers with stopper properly fixed on them.

(2)

On receiving the samples of such goods, the District Forum shall seal it and fix labels on the containers carrying following information:-

(i)

name and address of the appropriate laboratory to whom sample will be sent for analysis and test;

(ii)

name and address of the District Forum;

(iii)

case number;

(iv)

seal of the District Forum.

(3)

The sample will be sent to the appropriate laboratory by the District Forum for sending report within 45 days or within such extended time as may be granted by the District Forum after specifying the nature of the defect alleged and date of submission of the report.

6.

Salary and other allowances and terms and conditions of [service of]

[Inserted by Notification No. F.89 (DFS/CP/87, dated 19.7.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 19.7.1988, Page 49]

the president and members of the State Commission [Section 16 (2)].

- [(1) The president of the District Forum appointed on whole-time basis shall receive a salary equivalent to the Judge of the District Court. Other members sitting on whole-time basis shall receive a consolidated honorarium of Rs. 20,000/- (Rupees Twenty Thousand) per month.

(1A)

Initial honorarium for the Members of the District Forum will be Rs. 20,000/- (Rupees Twenty Thousand) per month and on completion of one year tenure the increase in honorarium will be Rs. 4,000/- (Rupees Four thousand) per year. The existing Members working as on 31.12.2012 will get increase of Rs. 4,000/- in honorarium w.e.f. 01.01.2013. Honorarium shall be subject to the maximum of Rs. 36,000/- (Rupees Thirty Six Thousand)

(1B)

In addition to this Members are entitled for Rs. 2,000/- per month as conveyance allowance:

Provided that the President who is a retired Judicial Officer, shall receive remuneration of last pay drawn less pension.]

[Substituted by Rajasthan Notification No. G.S.R. 7, dated 1.5.2013 (w.e.f. 23.7.1987).]

(2)

[The President of the State Commission shall be paid travelling allowance and daily allowance as per Travelling Allowance Rules applicable to the Judges of the Rajasthan High Court. Other members of the State Commission, shall be eligible for such travelling allowance and daily allowance as are admissible to Grade I Officer of the State Government and shall also be entitled to travel by air.]

[Substituted by Notification No. F.89 (10)FS/CP/88, dated 1.6.1989 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 1.6.1989, Page 21]

(3)

The salary, honorarium and other allowances shall be defrayed out of the Consolidated Fund of the State Government.

(4)

The president and the members of the State Commission shall hold office for a term of five years or upto the age of [70] [Substituted by Notification No. F.89 (DFS/CP/87, dated 30.6.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 30.6.1988, Page 47]

years whichever is earlier and shall not be eligible for renomination:

Provided that president and member may:-

(a)

by writing under his hand and addressed to the State Government resign his office any time;

(b)

be removed from his office in accordance with provisions of [sub-rule (5)]

[Substituted by Notification No. F.89 (DFS/CP/87, dated 19.7.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 19.7.1988, Page 49]

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(5)

The State Government may remove from office, president or a member of the State Commission who:-

(a)

has been adjudged an insolvent, or

(b)

has been convicted of an offence which in the opinion of the State Government, involves moral turpitude, or

(c)

has been physically or mentally incapable of acting as such member, or

(d)

has acquired such financial or other interest as is likely to affect prejudicially his functions as a member, or president, or

(e)

has so abused his position as to render his continuance in office prejudicial to the public interest. Provided that the president or a member shall not be removed from his office on the ground specified in clauses (d) and (e) [x x]

[Omitted by Notification No. F.89 (DFS/CP/87, dated 19.7.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 19.7.1988, Page 49]

except on an inquiry held by the State Government, in accordance with such procedure as it may specify in this behalf and finds the member to be guilty of such ground.

(6)

Before appointment, president and a member of the State Commission shall have to take an undertaking that he does not and will not have any such financial or other interests as is likely to affect prejudicially his functions as such member.

(7)

The terms and conditions of the service of the president and the members of the State Commission shall not be varied to their disadvantage during their tenure of office.

(8)

Every vacancy caused by resignation and removal of the president or any other member of the State Commission under [sub-rule (4)]

[Substituted by Notification No. F.89 (DFS/CP/87, dated 19.7.1988 Published in Rajasthan Rajpatra Part 4(ga) Extraordinary, dated 19.7.1988, Page 49]

or otherwise shall be filled by fresh appointment.

(9)

Where any such vacancy occurs in the office of the president of the State Commission, the senior most (in order of appointment) member, holding office for the time being, shall discharge the functions of the president until a person appointed to fill such vacancy assumes the office of the president of the State Commission.

(10)

When the president of the State Commission is unable to discharge the functions owing to absence, illness or any other cause, the senior most (in order of the appointment) member of the State Commission shall discharge the functions of the president until the day on which the president resumes the charge of his functions.

(11)

The president or any member ceasing to hold office as such shall not hold any appointment in or be connected with the management or administration of an organization which have been the subject of any proceeding under the Act during his tenure for a period of 5 years from the date on which he ceases to hold such office.

7.

Place of sitting and other matters relating to State Commission [Section 14(3) read with section 18 of the Act.]

(1)

Office of the State Commission shall be located at the Capital of the State.

(2)

The working days and the office hours of the State Commission shall be the same as that of the State Government.

(3)

The official seal and emblem of the State Commission shall be such as the State Government may specify.

(4)

Sitting of the State Commission, as and when necessary, shall be convened by the president.

(5)

No act or proceedings of the State Commission shall be invalid by reasons only of the existence of any vacancy among its members or any defect in its constitution.

(6)

The State Government shall appoint such staff, as may be necessary to assist the State Commission in its work and perform such other functions as are provided under these rules or assigned to it by the president. The salary payable to such staff shall be defrayed out of the Consolidated Fund of the State Government.

(7)

Where the opposite party admits the allegation made by the complainant, the State Commission shall decide the complaint on the basis of the merit of the case and documents present before it.

(8)

If during the proceedings conducted under section 13 of the Act, the state Commission fixes a date for hearing of the parties, it shall be obligatory on the complainant and opposite party or his authorised agent to appear before the State

Commission on such date of hearing or any other date to which hearing could be adjourned.

(9)

Where the complainant or his authorised agent fails to appear before the State Commission on such day, the State Commission may in its discretion either dismiss the complaint in default or if a substantial portion of the evidence of the complainant has already been recorded decide it on merits. Where the opposite party or its authorised agent fails to appear on the day of hearing, the State Commission may decide the complaint ex-parte.

(10)

Where any party to a complaint to whom time has been granted fails to produce his evidence or to cause the attendance of his witnesses, or to perform any other act necessary to the further progress of the complaint, for which time has been allowed, the State Commission may, notwithstanding such default:-

(a)

if the parties are present, proceed to decide the complaint forthwith: or

(b)

if the parties are, or any of them is, absent, proceed under sub-rule (9).

(11)

The State Commission may, on such terms as it may think fit and at any stage adjourn the hearing of the complaint but not more than one adjournment shall ordinarily be given and the complaint should be decided within 90 days from the date of notice received by the opposite party where complaint does not require analysis or testing of the goods and within 150 days if it requires analysis or testing of the goods.

(12)

Orders of the State Commission shall be pronounced and shall be signed and dated by the members of the State Commission constituting the Bench and shall be communicated to the parties free of charge.

8.

Procedure for hearing appeal [Section 15.]

(1)

Memorandum shall be presented by the appellant or his authorised agent to the State Commission in person or sent by registered post addressed to the Commission.

(2)

Every memorandum filed under sub-rule (1) shall be in legible handwriting preferably typed and shall set forth concisely under distinct heads, the ground of appeal without any argument or narrative and such ground shall be numbered consecutively.

(3)

Each memorandum shall be accompanied by the certified copy of the order of the District Forum appealed against and such of the documents as may be required to support grounds of objection mentioned in the memorandum.

(4)

When the appeal is presented after the expiry of period of limitation as specified in the Act, memorandum shall be accompanied by an application supported by an affidavit setting forth the fact on which appellant relies to satisfy the State Commission that he has sufficient cause for not preferring the appeal within the period of limitation.

(5)

The appellant shall submit four copies of the memorandum to the State Commission for official purposes.

(6)

On the date of hearing or any other day to which hearing may be adjourned, it shall be obligatory for the parties or their authorised agents to appear before the State Commission. If appellant or his authorised agent fails to appear on such date, the State Commission may decide the appeal on the merit of the case. If respondent or his authorised agent fails to appear On such date, the State Commission shall proceed ex-parte and shall decide the appeal ex-parte on merits of the case.

(7)

The appellant shall not, except by leave of the State Commission urge or be heard in support of any ground of objections not set forth in the memorandum or taken by leave of the State Commission under this rule:

Provided that the Commission shall not rest its decision on any other grounds unless the party who may be affected thereby, has been given, at least one opportunity of being heard by the State Commission.

(8)

The State Commission may, on such terms as it may think fit and at any stage, adjourn the hearing of appeal, but not more than one adjournment shall ordinarily be given and the appeal should be decided within 90 days from the first date of hearing.

(9)

Order of the State Commission on appeal shall be pronounced and shall be signed and dated by the members of the State Commission constituting the Bench and shall be communicated to the parties free of charge.

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